

The Verdict Is? : A Case Study Detailing the Courtroom Methodology as an Adaptable User Experience Research Method

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Abstract

The courtroom methodology is an adaptation of a market research technique that allows for the speed of a focus group with the more depth of understanding that usually comes from in-depth interviews and breadth of understanding that usually comes from surveys and other more wide-reaching methods. The elegance of this methodology is its adaptability, which allows for various configurations, modeled after a courtroom trial with different ‘lawyer groups’ presenting their cases, a neutral ‘jury’ determining a ‘verdict’ based on presented arguments, and a moderator managing and probing questions between and within groups, which is where the true value of this as a methodology is gained. A real example of this method as used by the YouTube Premium user experience team is detailed, as well as best practices and variants that can make this a go-to staple in one’s HCI and UX research toolbox.

CCS Concepts

• **Human-centered computing**; • **Human computer interaction (HCI)**; • **HCI design and evaluation methods**;

Keywords

user experience research methods, focus groups, qualitative methods

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1 Introduction

Gaining user understanding and perspectives during the product development process can be a key factor in the success of a given product. Many methods have become default methods over time, including in-depth interviews (IDIs), focus groups, surveys, as well as more usability-specific methodologies, including keystroke-level analyses, retrospective and prospective probing, contextual analyses, etc [2]. While there are many positives to these methods, there

are trade-offs that are typically made, namely time-consuming methods are needed to gain depth of detail (e.g. IDIs, retrospective/prospective probing, etc), or faster methods can sometimes focus too much on breadth, skimming the surface of unearthed issues (e.g. focus groups, surveys, etc) [4].

In a traditional focus group, there usually has to be a decision made by the moderator on which topic aspects to focus on in order to maximize the usefulness of the session [3, 5]. In a closed focus group, the topics are precisely chosen ahead of time and adhered to as much as possible. In an open focus group, a rough outline of topics is sketched out, typically just known to the moderator, but allows for more open dialogue, guided by what the participants choose to discuss and explore, but may end up meandering through side-topics away from what the moderator or other parties may be interested in learning. Both variants provide a way to gain perspectives from various people in a timely manner, however needing to preemptively decide on the open or closed nature of a focus group means that there is the potential to leave important information or perspectives unheard.

The courtroom methodology is an adaptation of a market research technique that allows for the speed of a focus group with the more depth of understanding that usually comes from in-depth interviews and bread of understanding that usually comes from surveys and other more wide-reaching methods. The point and value of this methodology is not to determine which side “wins” the trial, but to hear and learn from the deliberations and discussions given within and between groups, in a way that can be lost in a traditional focus group format.

2 ABOUT THE COURTROOM METHODOLOGY

The courtroom methodology is a unique focus group discussion technique that facilitates in-depth product debates. It allows us to capture user sentiments and opinions by hearing how people either advocate or criticize a product in their own words, as well as allowing for stakeholder understanding of top participant positives, concerns, prioritizations, and mental models about a given feature, product, or service.

This multi-group focus group approach has its roots in the strategic market research consultancy world, particularly by marketing research firms like BSG [1] who have extensive experience in political campaigning. They pioneered the adaptation of the courtroom setup to focus group research, introducing an element of debate and direct comparison between contrasting viewpoints. Subsequently, the YouTube user experience research team further refined this methodology, tailoring it specifically for product and user experience (UX) research contexts.

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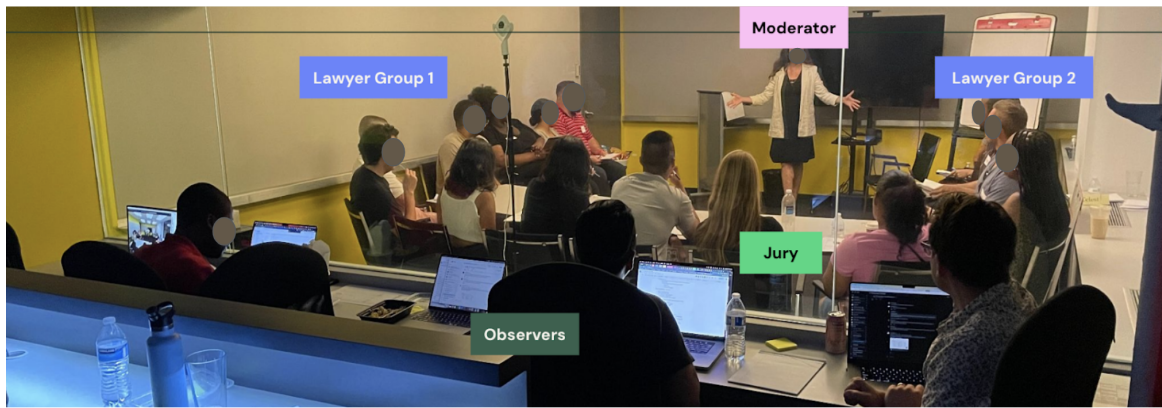


Figure 1: Setup of an in-progress courtroom methodology session. Photograph taken by second author.

The objective of this methodology is not to reach a definitive verdict, but rather to meticulously observe and document the questions, points, and arguments that emerge both within and between the subgroups. Similar to any UX research, the moderator is critical in the courtroom method. They should carefully note the points that resonate strongly within each subgroup, and how the groups prioritize and structure their respective arguments. This prioritization can serve as a valuable proxy for understanding the relative importance and ranking of the selected elements from the users' perspective.

2.1 Setup

This research method involves interacting with several groups of participants simultaneously in a coordinated fashion. For the participant side, people are recruited for one of the three groups: two groups of **lawyers** engage in a simulated courtroom debate, while a group of **jurors** observe the proceedings and ultimately reach a verdict at the end. A **moderator** oversees the entire process, providing instructions, coordinating the various groups, and facilitating the overall discussion. Finally, representatives from the stakeholders or clients, or sometimes other researchers, are present to observe the exercise as **observers**, behind one-way glass or in another room observing via video feed. They act as notetakers and may ask follow-up questions via (or send messages to) the moderator in real-time if specific probing is desired.

While there's no single "correct" sample size, it's advisable to have a minimum of 3 participants per lawyer group and 6-8 individuals in the jury group to ensure lively discussions and a range of viewpoints.

Participant recruitment is a key aspect of this methodology. Not only does it require recruiting a lot of participants, but those participants should ideally be able to connect with the side they are representing in the courtroom trial (unless intentionally chosen not to be representative; see variants in the discussion section). For example, in the YouTube Premium example of the method detailed below, Lawyer Group 1 was composed of current subscribers to YouTube Premium, Lawyer Group 2 was composed of former subscribers of YouTube Premium, and the Jury group was composed of people who had not had any experience with YouTube Premium,

allowing them to all have (or not have, by design) personal experience with the product and topic of discussion. As is standard, all participants were compensated for their participation in this courtroom method focus group, though extra motivation was provided to the lawyer groups by awarding them bonus compensation if the jury group named their side as having the "winning" argument.

2.2 Process

The total session duration is about three and a half hours for the lawyer groups and slightly shorter for the jury group. While the main "trial" itself lasts for an hour, valuable insights can be gleaned throughout various stages, including the warm-up discussions and debrief sessions.

Given the intricate nature of this process and the coordination it necessitates, the moderator's role is pivotal. A seasoned moderator adept at posing pertinent questions and effectively managing time allocation across each step is essential for successful implementation.

3 DISCUSSION

3.1 Strengths & Limitations

A primary strength of the courtroom method is that it provides rich, detailed, varied findings about participant prioritizations, thoughts and understandings about product features, arguments they use for and against given aspects of a product, and much more. While other methods can also get at these findings, the efficiency of being able to explore deeply across a breadth of areas within a short time highlights the effectiveness of the method.

By its nature, the team-based setup of the courtroom methodology discourages the tendency to conform to others' opinions, a common pitfall in traditional focus group discussions. Instead, it encourages the expression of diverse perspectives from various groups.

Relatedly, the team-based setup is designed to iteratively build up participant arguments through learning from each other, enhancing their understanding and engagement, as well as providing information to the moderator and observers about which product aspects stand out, shift the needle on user perception, and various

Table 1: Example Steps that were used with method implementation for YouTube Premium. Gray cells indicate where moderator is when multiple groups completing different actions.

Step	Time	Lawyer Group 1YouTube Premium Subscribers n = 4	Lawyer Group 2YouTube Free Users n = 4	Jury n = 8
Introduction with all lawyers	15 min	The moderator explains the Courtroom set-up to both lawyer groups and their respective goals of the day.		
Warm-up with Lawyer Group 1	15 min	Moderator-led discussion: Get lawyers to start thinking about their experiences with YouTube Premium and what features they love the most.	Lawyer Group 2 is having unmoderated discussion on their own.	
Warm-up with Lawyer Group 2	15 min	Lawyer Group 1 is having unmoderated discussion on their own.	Moderator-led discussion: Get lawyers to start thinking about what they'd want to see improved in YouTube Premium.	
Lawyer Groups prep cases (separately); jury is briefed	35 min	Both Lawyer Groups prep their cases in individual rooms [unmoderated discussion; subsequent jury introduction takes place during this time as well]		Moderator introduces the method, warms up Jury members, and gets them to start thinking about what makes streaming subscriptions worthwhile.
Trial	60 min	Both Lawyer Groups present their 1) opening statements, 2) case presentations and 3) closing statements. Then each group answers cross-examination questions from the other lawyers and the Jury.		
Jury Deliberation	20 min	Break		
		Let the Jury share thoughts with each other and come up with a verdict among themselves, without a moderator or lawyers present (though observers may observe the arguments made and note aspects that stick out the most)		
Verdict & Debrief	15 min	The Jury shares their verdict. Moderator probes on arguments and pain points that organically came up during the trial and Jury's deliberation. [The courtroom method officially ends here.]		
Collaborative Ideation Session (optional)	30 min	This optional additional ideation exercise is to obtain more insights into strengths and pain points: what features are essential, what need to be fixed, what is missing. All participants, no longer divided in roles, can share their analogous experiences and perspectives.		

other nuanced learnings that can emerge when participants are free to engage and “persuade” each other with their perspectives.

Cross-functional stakeholders enjoy this more engaging and empathy-building way to learn from customers. Some notable stakeholder reactions:

“I think about this research all the time. I’ve never seen participants get so invested in sharing their feelings

about a product,” said a UX Designer who was an observer of the previous case study.

“I found it really helped to understand what users love about the product, and see how much they really know about it,” said a product manager (PM) who was an observer of the previous case study.

The primary limitation of this method is that it requires extensive preparation, including targeted recruitment across diverse groups

and securing a research facility equipped with a minimum of three rooms. As such, the overall cost (both time and money) can be high, due to having to pay the various participants (including a bonus for the “winning” side), as well as the time spent of the various stakeholders to ensure strong moderation and enough observers to capture the rich depth of insights being generated by the participants.

The moderator is a key point of success, and potential failure, in the methodology as well. The moderator should be familiar with successfully conducting focus groups (e.g. quickly building rapport, walking that fine balance between being able to probe deeply and not derail or tunnel the flow of the session, making sure everyone feels heard appropriately, etc), working with multiple groups of participants, able to juggle multiple streams of information from various groups (participant and stakeholder) simultaneously, and knowledgeable about the logistically complex process and who is where, what is next, at any given point.

A final limitation is that the method was created and developed for in-person completion. Coordinating multiple groups in a remote setting presents considerable challenges that makes this already complex methodology more difficult, such as needing to build rapport within and amongst groups quickly and remotely, the need for multiple knowledgeable moderators, the need for a shortened timeline to preserve attention spans and minimize distractions, etc. That said, the authors have been exploring ways to adapt the methodology to be remote-friendly by using pre-work surveys, shortening the timeline, and using modern virtual meeting technology features like breakout rooms, etc.

Like any methodology, expertise would be gained through repetition of completion, though going in with knowledge about the complexities would allow one to be more successful from even the initial iteration.

3.2 When to use the courtroom methodology

The courtroom method works best in a few key instances. Primarily, when trying to gain user insights about broad topics or explore new areas of concern or interest for customers or users of a product. Another great use case is when there are opposing views on the topic or product, or a need to understand how users view a given product vs. competitors. Lastly, looking for a fresh perspective to tackle the question that had been answered / explored.

This method might not be appropriate when the need is to deeply explore a particular set of research questions on specific areas of a product, as it could narrow down the focus group discussions in a way that does not take the best advantage of the methodology. It also does not work as well when there is a need to gain user insights that require in-depth exploration, such as user mental models and unmet needs, as these can vary at individual levels and may not be fully explored or uncovered in the varied group setting of the courtroom method. Lastly, any evaluation of completely new concepts, designs or ideas should not be done with this method as described above, as the participants would not be familiar enough with the concepts to be able to successfully form arguments in their respective lawyer groups (see the “Variants” section below to see a version of this method that could allow for concept exploration).

4 Variants

The elegance of the courtroom methodology is its adaptability. In the example outlined above, the two “Lawyer Groups” were comprised of participants who personally identified with opposing sides of the values of the product (currently active and happy subscribers vs former subscribers). Deliberate variations in the composition of the participants and the setup are detailed below.

4.1 Heterogenous Groups

By design, the two lawyer groups could comprise a mix of participants who would normally be on opposing sides. For example, using the scenario we described earlier, both groups could have a mix of current subscribers and former subscribers within them. This allows for more opportunities to collect friction and discussion points within groups, not just during the group cross-examination portion of the “trial”.

4.2 Pre-seeding ideas

The content and ideas discussed and deliberated by the lawyer subgroups could be pre-seeded by the moderator and/or researchers. This would allow for more of a prioritization and understanding of “why” about given topics by the lawyer participants, though a downside is that there could be ideas/topics not included that may have otherwise been important or in consideration by the group. A deliberate decision would need to be made by the researchers and moderators if this intentional narrowing down of the topics is worth it or would warrant a different methodology than the courtroom method.

4.3 Stakeholder groups

This exercise could be used as an early exercise during the brainstorming and development phase within a stakeholder group, to allow for stakeholders to take the perspective of their users, flesh out and argue their product perspective, and allow for open dialogue about potential product options earlier in the process. Ideally the groups would contain a mix of stakeholders, as opposed to being one set of homogeneous stakeholders vs another set of homogeneous stakeholders (e.g. all PMs vs all designers).

4.4 Three or more lawyer groups

Having more than two lawyer groups could add more nuances and opportunities to deep dive into user perspectives. There would have to be a deliberate need or value-add though, as having more than 2 lawyer groups adds a great amount of complexity to the running of this methodology (more people to manage, more groups to deep-dive with individually, more cross-examination connections needed to get all groups interacting with each other, etc).

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References

- [1] BSG - Benenson Strategy Group. <https://www.bsgco.com/>
- [2] Susan Farrell. 2017. UX Research Cheat Sheet. Nielsen Norman Group. Referenced September 2024 from <https://www.nngroup.com/articles/ux-research-cheat-sheet/>
- [3] Lucidspark. 2021. How to conduct effective UX focus groups. Referenced September 2024 from <https://lucidspark.com/blog/ux-focus-groups>
- [4] Christian Rohrer. 2022. When to use which user-experience research methods. Nielsen Norman Group. Referenced September 2024 from <https://www.nngroup.com/articles/which-ux-research-methods/>
- [5] UserInterviews.com. 2020. Focus Groups. Referenced September 2024 from <https://www.userinterviews.com/ux-research-field-guide-chapter/focus-groups>